

25SMCV03208 25SMCV03208

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TENTATIVE RULING

August 25, 2026

25SMCV03208 (Schwarz, et. al. v.
Bigos, et. al.)

RELEVANT BACKGROUND

On June 23, 2025,
plaintiffs Jesse Schwarz (Schwarz) and Kelsey Lewis (Lewis) (collectively,
Plaintiffs or Tenants) filed their initial complaint against defendants Christopher
J. Bigos (Christopher) and Marley R. Bigos (Marley) (collectively, Defendants
or Landlords). On August 12, 2025, Plaintiffs filed their first amended
complaint (FAC) against Defendants alleging six causes of action: (1) conversion;
(2) fraud; (3) breach of Civ. Code § 1950.5; (4) breach of contract; (5) money
had and received; (6) unfair competition.

On September 11, 2025, Landlords
filed a cross-complaint against Plaintiffs alleging seven causes of action: (1)
breach of contract; (2) anticipatory breach of contract; (3) breach of implied
covenant of good faith and fair dealing; (4) promissory estoppel; (5) fraud;
(6) unjust enrichment; (7) rescission of contract. Landlords allege that Tenants
breached the parties' Lease by, among other things, failing to pay rent and
utilities. (Cross-Complaint, ¶¶ 14-40.)

INSTANT MOTION

On November 3, 2025, Tenants filed the instant demurrer to the second through seventh causes of action alleged in Landlords' Cross-Complaint. Landlords filed an opposition, and Tenants filed a reply.

MEET AND CONFER

The Court finds that Tenants have satisfied the meet and confer requirement. (Klein Decl. ¶ 2.)

DISCUSSION

I.

TENANTS' DEMURRER TO CROSS-COMPLAINT

A. Second Cause of Action – Anticipatory Breach of Contract

The Court agrees with Tenants that the Cross-Complaint fails to allege facts sufficient to constitute a claim for anticipatory breach of contract. The Court notes that Landlords do not oppose sustaining the demurrer to the Second Cause of Action but request leave to amend that claim to allege, to the extent supported by the facts, the specific statements, dates, speakers, recipients, and future obligations constituting any alleged repudiation. (Opp. at p. 2:24-25.)

Accordingly, the demurrer to the second cause of action is SUSTAINED WITH LEAVE TO AMEND.

B. Third, Fourth, and Seventh Causes of Action – Breach of Implied Covenant of Good Faith and Fair Dealing, Promissory Estoppel, and Rescission of Contract

The Court agrees with Tenants that Landlords' claims for breach of the implied covenant of good faith and fair dealing, promissory estoppel and rescission of contract are duplicative of their breach of contract claim. (Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135 [holding that demurrer should have been sustained as to duplicative causes of action]; Rodrigues v. Campbell Industries (1978) 87 Cal.App.3d 494 [finding demurrer was properly sustained without leave to amend as to cause of action that contained allegations of other causes and "thus add[ed] nothing to the complaint by way of fact or theory of recovery"]; Careau

& Co. v. Security Pacific Business Credit (1990) 222 Cal. App. 3d 1371, 1401 [good faith and fair dealing].) These cases of action are merely duplicative and add nothing to the Cross-Complaint by way of fact or theory. The alleged breaches of the implied covenant are the very same breaches as those alleged in the breach of contract claim. (Cross Compl. ¶ 69.) For the promissory estoppel cause of action, Landlords allege that Tenants breached the same promises in their breach of contract cause of action. (See Cross-Complaint, ¶¶ 71-74.) Lastly, for the rescission of contract cause of action, Landlords restate the same contract terms and the same conduct. (Id. ¶ 99-113.)

Accordingly, the demurrer to the third, fourth, and seventh causes of action are SUSTAINED WITH LEAVE TO AMEND.

C. Fifth Cause of Action – Fraud

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Id. at p. 645.) “[Fraud’s] particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

The Court agrees with Tenants that Landlords’ claim for fraud lacks the requisite particularity. The fraud claim alleges conduct that has nothing to do with any representations. (Cross-Complaint, ¶¶ 85. [“Tenants. . . made efforts to prolong the remediation efforts and failed to uphold their end of the Lease and agreement between the Landlords and Tenants”] and 86 [“Tenants removed a battery pack that was required to operate a Smart Lock on the door of the House”].) Also, it is unclear from the allegations what misrepresentations the alleged fraud is based on. (See Id. ¶

82, 89, 91.) Landlords also fail to allege when the statements were made, which Tenant made them, to whom, whether they were made in writing or verbally, and facts showing detrimental reliance. (Id. ¶ 79-96.) Landlords' opposition does not adequately address these shortcomings. (See Opp. at p. 4-5.)

Accordingly, the
demurrer to the fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.

D. Sixth Cause of Action – Unjust Enrichment

“The elements for a claim of unjust enrichment are receipt of a benefit and unjust retention of the benefit at the expense of another. The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained, to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched.” (Lyles v. Sangadeo-Patel (2014) 225 Cal.App.4th 759, 769, quotation marks and citations omitted.) Notably, “[u]njust enrichment is not a cause of action”; it is simply “a restitution claim.” (Hill v. Roll International Corp. (2011) 195 Cal.App.4th 1295, 1307; see also Melchior v. New Line Productions, Inc. (2003) 106 Cal.App.4th 779, 793; McBride v. Boughton (2004) 123 Cal.App.4th 379, 384.)

The Court agrees with
Tenants that Landlords' claim for unjust enrichment fails to state facts sufficient to constitute a cause of action. Landlords allege only that “Landlords reallege and incorporate by reference the foregoing paragraphs as though fully set forth herein” and “Tenants have been unjustly enriched at the expense of Landlords in an amount subject to proof at trial.” (Cross-Complaint ¶ 97-98.) The alternative theory argument alleged in the opposition (Opp. 7:14-8:5) is not alleged in the Cross-Complaint. The Cross-Complaint does not allege that the Lease or later agreement is void, unenforceable, ineffective, or does not govern the benefits for which restitution is sought.

Accordingly,
the demurrer to the sixth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Plaintiffs may have thirty (30) days
in which to file and serve an amended complaint.

Moving party to give notice.